

(p)(1).) Only if this initial burden is met will the burden shift to the opposing party to establish a triable issue of material fact. (*Id.* at (p)(1).) In reviewing a motion for summary adjudication, the court must view the supporting evidence and all reasonable inferences drawn from the evidence in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.)

As a preliminary matter, plaintiff argues that the court has already determined it may proceed under the Right to Repair Act in light of its ruling on prior demurrers. However, the court's ruling on prior demurrers addressed the facts as alleged in the operative pleading, as opposed to the issue of whether plaintiff possesses evidence establishing a triable issue of fact regarding applicability of the Right to Repair Act.

Defendant asserts the plaintiff's claims under the Right to Repair Act cannot apply because it applies only to "original construction intended to be sold as an individual dwelling unit." (Civ. Code § 896.) Defendant submits evidence that he was retained to construct a custom home for property owners the Welks and did not perform contractor services for original construction intended to be sold. (Deft. SSUMF 3-7.) Based on this evidence, defendant meets his initial burden to demonstrate there are no triable issues of fact, shifting the burden to plaintiff to establish a triable issue.

In opposition, plaintiff presents no evidence to raise a triable issue of fact that the home was designed and constructed with the intent that it be sold, nor does plaintiff identify caselaw which would support the contention that the Right to Repair Act applies in the absence of such evidence.

As plaintiff fails to meet its burden to demonstrate a triable issue of fact, the motion for summary adjudication is granted as to the third and fifth causes of action.

6. S-CV-0050872 Ernst, Cody v. Denham, Michele

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Protective Order

Plaintiff, by and through his former counsel of record, moves for a protective order against defendants for an extension of time to respond to discovery demands. This motion was noticed for hearing on August 21, 2026 at 2:00 p.m. in Department 33. Due to scheduling changes at the court, this motion hearing was continued to August 25, 2026 at 8:30 a.m. in Department 32. While notice of the continued hearing was provided to defense counsel (order continuing hearing filed Jun. 29, 2026), it appears due to the court's mistake that plaintiff who is now self-represented was not served the notice of continued hearing.

The court on its own motion continues this motion for protective order to be heard on **September 8, 2026 at 8:30 a.m. in Department 32. The clerk of the court is directed to serve a copy of this order on plaintiff at his address of record, which is listed in the court's February 5, 2026 order relieving counsel.** The court intends to reach the merits of this motion at the continued hearing.

7. S-CV-0051202 Khachadourian, Gilbert Jr. v. Cook, Richard N

Defendants Kenneth O. Daley and Holly M. Daley, Trustees of the Daley Family Trust, established November 5, 2008's Motion for Determination of Good Faith Settlement

Defendants Kenneth O. Daley and Holly M. Daley, Trustees of the Daley Family Trust, established November 5, 2008, move for determination of good faith settlement. (Code Civ. Proc., § 877.6, subd. (a)(1).) The unopposed motion is granted. Based on the standards set forth in *Tech-Bilt v. Woodward Clyde & Associates* (1985) 38 Cal.3d 488, the settlement at issue is within the reasonable range of the settling other defendants' proportionate shares of liability for plaintiffs' injuries and therefore is in good faith within the meaning of Code of Civil Procedure section 877.6.

Defendants Richard Noah Cook and Mary Melody Cook's Motion for Determination of Good Faith Settlement

Defendants Richard Noah Cook and Mary Melody Cook, move for determination of good faith settlement. (Code Civ. Proc., § 877.6, subd. (a)(1).) The unopposed motion is granted. Based on the standards set forth in *Tech-Bilt v. Woodward Clyde & Associates* (1985) 38 Cal.3d 488, the settlement at issue is within the reasonable range of the settling other defendants' proportionate shares of liability for plaintiffs' injuries and therefore is in good faith within the meaning of Code of Civil Procedure section 877.6.

Defendants Richard Noah Cook and Mary Melody Cook's Motion for Summary Judgment, or in the alternative, Summary Adjudication

Defendants Richard Noah Cook and Mary Melody Cook's motion for summary judgment, or in the alternative, summary adjudication, is dropped in light of the moving party's request to remove from calendar.

Defendants David Lane and Francesca Lane's Motion for Determination of Good Faith Settlement

Defendants David Lane and Francesca Lane, move for determination of good faith settlement. (Code Civ. Proc., § 877.6, subd. (a)(1).) The unopposed motion is granted. Based on the standards set forth in *Tech-Bilt v. Woodward Clyde & Associates* (1985) 38 Cal.3d 488, the settlement at issue is within the reasonable range of the settling other defendants' proportionate shares of liability for plaintiffs' injuries and therefore is in good faith within the meaning of Code of Civil Procedure section 877.6.